

SERVICE AGREEMENT

This Service Agreement ("Agreement") is entered into between Nimbus Software Pvt Ltd ("Customer") and Orion Data Systems Inc ("Service Provider") effective 12 January 2026.

1. SCOPE OF SERVICES

The Service Provider shall perform the services described in the attached Statement of Work, including software development and technical support services.

2. SERVICE LEVELS

The Service Provider shall use commercially reasonable efforts to meet the service levels described in Schedule 1, including response and resolution times for support requests.

3. FEES AND PAYMENT

The Customer shall pay the fees set out in Schedule 2 within thirty (30) days of a valid invoice. Fees paid are non-refundable.

4. TERM AND TERMINATION

This Agreement shall continue for an initial term of twelve (12) months and shall automatically renew for successive twelve (12) month terms unless either party gives ninety (90) days notice of non-renewal.

5. LIMITATION OF LIABILITY

The Service Provider's aggregate liability under this Agreement shall not exceed the fees paid in the one (1) month preceding the claim. Neither party shall be liable for indirect or consequential loss of any kind.

6. INDEMNIFICATION

The Customer shall defend and indemnify the Service Provider against any third-party claims arising from the Customer's use of the deliverables.

7. GOVERNING LAW

This Agreement is governed by the laws of India, with courts at Bengaluru having exclusive jurisdiction.